ENERGY REGULATORY COMMISSION
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Republic of the Philippines
ENERGY REGULATORY COMMISSION
Pasig City

RESOLUTION NO. 08, Series of 2020

A RESOLUTION ADOPTING THE GUIDELINES GOVERNING ELECTRONIC APPLICATIONS, FILINGS AND VIRTUAL HEARINGS BEFORE THE ENERGY REGULATORY COMMISSION

WHEREAS, on 08 March 2020, President Rodrigo Roa Duterte signed Proclamation No. 922, Series of 2020[1] declaring a State of Public Health Emergency throughout the Philippines upon the recommendation of the Department of Health (DOH) following the confirmed local transmission of the Coronavirus Disease 2019 (COVID-19). Said State of Public Health Emergency shall remain in force and effect until lifted or withdrawn by the President[2];

WHEREAS, due to the rapid increase of cases of infection in the country, the President, on 16 March 2020, signed Proclamation No. 929, Series of 2020[3] declaring a State of Calamity throughout the Philippines for a period of six (6) months, unless lifted or extended as circumstances may warrant, and further providing for the imposition of Enhanced Community Quarantine (ECQ) over the entire Luzon[4];

WHEREAS, the national government in implementing the ECQ, seeks to slow down the transmission of the COVID-19 virus, and eventually put an end to its transmission;

WHEREAS, one mode of transmission is through physical interactions between individuals or groups of individuals;

WHEREAS, prior to the implementation of the ECQ, most transactions by the public with government are done in person, thus

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[1]Entitled, "DECLARING A STATE OF PUBLIC HEALTH EMERGENCY THROUGHOUT THE PHILIPPINES;
[2] Section 5 of Proclamation No. 922, Series of 2020;
[3]Entitled, "DECLARING A STATE OF CALAMITY THROUGHOUT THE PHILIPPINES DUE TO CORONA VIRUS DISEASE 2019;
[4] Sections 1 and 2 of Proclamation No. 929, Series of 2020; underscoring supplied;

requiring the physical presence of individuals in government offices;

WHEREAS, existing health protocols in response to the Public Health Emergency requires physical distancing, which, given the limited space in government offices, is difficult to observe;

WHEREAS, consistent with the commitment of the National Government to protect its citizens from COVID-19 while continuously providing efficient government service, the Energy Regulatory Commission deems it imperative to temporarily modify and/or supplement its existing procedures through electronic and various online platforms during this time of strict physical distancing and health protocols;

WHEREAS, aside from the on-going community quarantine and safety considerations, the Commission also recognizes the necessity and merits of eventually fully migrating into automated processes to promote efficiency and a wider reach of the Commission's services;

WHEREAS, in view of the aforementioned considerations, the Commission, on 28 May 2020, approved for posting in its official website (www.erc.gov.ph) the first draft of the proposed "Interim Guidelines Governing Electronic Application, Filings and Virtual Hearings before the Energy Regulatory Commission," (Draft Interim Guidelines) docketed as ERC Case No. 2020-001 RM;

WHEREAS, in its Notice dated 28 May 2020, the Commission directed all interested parties to submit their comments on the Proposed Interim Guidelines on or before 11 June 2020;

WHEREAS, on various dates from 10-15 June 2020, the Commission received various comments to the said Draft Interim Guidelines from the following: (1) SI Power Corporation; (2) Aboitiz Power Corporation; (3) AC Energy Philippines, Inc.; (4) Association of Mindanao Rural Electric Cooperatives, Inc.; (5) Dechavez Lerios-Amboy and Evangelista Law Offices; (6) First Gen Corporation; (7) GNPower Ltd. Co.; (8) Lachica and Associates; (9) Marinduque Electric Cooperative, Inc.; (10) Millennium Energy, Inc.; (11) Manila Electric Co. Inc.; (12) Misamis Oriental I Rural Electric Service Cooperative, Inc.; (13) MPower;

(14) Olongapo Electricity Distribution Company, Inc.; (15) SMC Global Power Holdings; (16) Visayan Electric Company; (17) Vivant Energy Corporation; (18) Cebu II Electric Cooperative, Inc.; (19) National Grid Corporation of the Philippines; (20) Alsons Power Group; (21) Batangas II Electric Cooperative, Inc.; and (22) Cagayan Electric Power and Light Company, Inc.;

NOW, THEREFORE, BE IT RESOLVED, as it is hereby resolved, that the Commission adopts and issues the **GUIDELINES GOVERNING ELECTRONIC APPLICATIONS, FILINGS AND VIRTUAL HEARINGS BEFORE THE ENERGY REGULATORY COMMISSION**, hereto attached as Annex "A" and made an integral part of this Resolution.

This Resolution shall take effect immediately following its publication in the Official Gazette of the Philippines.

Let copies of this Resolution be furnished the University of the Philippines Law Center – Office of the National Administrative Register (UPLC-ONAR) and all industry stakeholders, as well as published in the ERC website and such other online platform available to the Commission under the current circumstances.

Pasig City, 6 August 2020.

ERC
Office of the Chairperson
'AVSTD-2020-09-570-0001'

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